Referral Agreement

INTRODUCING CUSTOMERS FOR A REWARD

This agreement is made on _____ between _____ (the **"Company"**) and _____ (the **"Referrer"**).

1. What counts as a referral

1.1 A **"Referral"** is a person or business that the Referrer introduces to the Company in writing, by name and with contact details, that the Company has not already been in contact with in the twelve months before the introduction, and that has not been introduced by someone else first.

1.2 The Company will tell the Referrer within _____ whether it accepts an introduction as a Referral, and, if it does not, why not.

1.3 A Referral who becomes a customer within _____ of the introduction is a **"Qualifying Customer"**.

2. The reward

2.1 For each Qualifying Customer, the Company will pay the Referrer _____.

2.2 The reward is earned only once the Qualifying Customer has paid the Company in cleared funds, and is calculated on the amount paid, not including taxes. If the Qualifying Customer is refunded, the reward on that amount is repaid or deducted from later rewards.

2.3 The Company will pay each reward within _____ of the end of the month in which it was earned, with a statement showing how it was worked out. The Referrer is responsible for tax on what it receives.

3. How the Referrer behaves

3.1 The Referrer will describe the Company and its products honestly and will not make promises on the Company's behalf. It may not make any statement the Company has not approved about prices, results or terms.

3.2 The Referrer will follow the law, including the rules on marketing, unsolicited messages and disclosing that it receives a reward for a recommendation. It will not use spam, misleading advertising or the Company's trademarks except as the Company allows in writing.

3.3 The Referrer is independent. It is not the Company's employee or agent, and it may not sign anything for the Company or bind it.

4. Personal details

4.1 The Referrer will introduce a person only if the Referrer has that person's permission, or another lawful reason, to pass their details to the Company. The Company will use those details only to contact the person about its products, and will tell them how it got their details.

5. How long this lasts

5.1 This agreement continues until either side ends it by giving the other thirty days' written notice. A Referral accepted before it ends still earns the reward, if it becomes a Qualifying Customer in time. The Company may end it straight away if the Referrer breaks the rules above.

6. Limits on responsibility

6.1 Neither side is responsible to the other for loss of profit or any indirect loss. The Company's total responsibility under this agreement is limited to the rewards that are due. The Company does not promise any amount of business.

7. Tracking and reports

7.1 The Company will keep a record of each Referral and tell the Referrer, on request and at least every quarter, the status of each one: accepted, in progress, customer, or not accepted.

7.2 If the Referrer disagrees with the Company's record or with a reward statement, it will tell the Company within sixty days, with its reasons, and the sides will work together in good faith to settle the difference, with the Company providing the records that support its figures.

8. Governing law

8.1 This document, and any dispute arising out of it, is governed by the laws of the State of _____, without regard to its rules about conflicts of laws.

9. General

9.1 **The whole agreement.** This agreement is the entire agreement between the sides on its subject. It replaces everything said or written before about the same subject, and neither side has relied on any promise that is not written here.

9.2 **Changes in writing.** A change to this agreement is effective only if it is in writing and signed by both sides. An email exchange does not change it unless each side expressly says that it is a change and signs it electronically.

9.3 **Counterparts and electronic signatures.** This agreement may be signed in separate copies, which together are one document. A signature made electronically, including by typing, drawing or selecting a signature, is as effective as a handwritten one, and each side agrees to sign and keep this agreement in electronic form.

Signatures

By signing below, each party agrees to this document and confirms that the person signing has the authority to do so.

COMPANY	REFERRER
_____	_____
PRINTED NAME	PRINTED NAME
_____	_____
TITLE OR CAPACITY	TITLE OR CAPACITY
_____	_____
SIGNATURE	SIGNATURE
_____	_____
DATE	DATE